

HEADNOTE

“Two applications to intervene in an appeal concerning public access to the register have been refused as inadmissible due to lack of legal interest in the result of the action pending before the Court of Appeal.”

COURT

Court of Appeal Luxembourg

PATENT

KEYWORDS

Public access to the register

PROCEEDINGS

Application for intervention (appeal)

Application to intervene

Admissibility

Rule 262

Public access to the register

SUMMARY

The Court of Appeal in Luxembourg issued an order on two applications to intervene in an appeal concerning public access to the register under Rule 262 paragraph 1 subparagraph (b) of the Rules of Procedure. The appeal was brought by Ocado Innovation Limited against an order of the Nordic-Baltic Regional Division granting a third party (Autostore) access to the statement of claim, subject to redaction of personal data. Two law firms — Mathys & Squire LLP and Bristows (Ireland) LLP — each applied to intervene in the appeal, arguing that the outcome would be determinative for their own pending applications for access to documents in separate UPC proceedings before the Central Division in Munich. The Court of Appeal refused both applications as inadmissible. The court held that neither applicant had a sufficient legal interest in the result of the appeal — a mere procedural or strategic interest in the legal ruling was not enough to establish the legal standing required under the Rules of Procedure.